

25STCV11123 25STCV11123

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MOTION

SETTING COURT SUPERVISED DISCOVERY CONFERENCE

The Court tenders the following tentative decision in the matter Dustin Clemons v. Pinkerton Consulting & Investigations Inc., et al., Los Angeles County Superior Court case number 25STCV11123, set for hearing on August 21, 2026. Dustin Clemons (Plaintiff) moves for an order setting a discovery conference pursuant to Code of Civil Procedure section 128 or alternatively appointing a discovery referee in this matter pursuant to section 639. Pinkerton Consulting and Logistics, Inc., BNSF Railway Co., and Sequoia Consultants, Inc. (collectively, Defendants) oppose the motion. The motion is denied.

Every court

has the inherent authority to provide for the orderly conduct of proceedings before it. (Code Civ. Proc., § 128, subd. (c).) They are also empowered to control the conduct of their ministerial officers. "When the parties do not consent, the court may, upon the written motion of any party, or of its own motion, appoint a referee" in certain cases. (Code Civ. Proc., § 639, subd. (a).) These include: "(1) When the trial of an issue of fact requires the examination of a long account on either side; in which case the referees may be directed to hear and decide the whole issue, or report upon any specific question of fact involved therein. (2) When the taking of an account is necessary for the information of the court before judgment, or for carrying a judgment or order into effect. (3) When a question of fact, other than upon the pleadings, arises upon motion or otherwise, in any stage of the action. (4) When it is necessary for the information of the court in a special proceeding. (5) When the court in any pending action determines that it is necessary for

the court to appoint a referee to hear and determine any and all discovery motions and disputes relevant to discovery in the action and to report findings and make a recommendation thereon." (Ibid.)

Here, Plaintiff seeks a court-supervised conference to address and resolve discovery disputes before formal motion practice occurs. The Court does not find it appropriate to order such a hearing; regular motion practice is sufficient to resolve the discovery disputes in this case. The parties may agree to an informal discovery conference if they wish, but it is unnecessary to order such a proceeding.

Plaintiff additionally renews his request for a discovery referee based on the following developments: (1) the Court's order granting Sequoia's motions to compel; (2) the Court's voiding of discovery served during a stay; (3) the Court's granting BNSF's motion for leave to file a cross-complaint; (4) Plaintiff's new deposition notices; (5) Defendants' responses to Plaintiff's requests for admission; (6) Sequoia's meet and confer efforts; and (7) monetary sanctions levied against Plaintiff. Specifically, Plaintiff requests the appointment of a referee pursuant to subdivision (a)(5) for the management and determination of all discovery motions and disputes. "A discovery referee must not be appointed under Code of Civil Procedure section 639(a)(5) unless the exceptional circumstances of the particular case require the appointment." (Rules of Court, rule 3.920(c).) Plaintiff has not demonstrated that exceptional circumstances exist to justify the appointment of a referee. Accordingly, Plaintiff's motion is denied.

Conclusion:

The Court denies
Plaintiff's motion.